

Conciliation Report and Award

State of Ohio State Employment Relations Board

December 29, 2019

Date of Hearing: November 7, 2019

Date Transcript Received: November 24, 2019

In the Matter of Conciliation Between:

Perry Township Board of Trustees

and

***Perry Township Professional Fire Fighters Association, IAFF
#3960***

Case #: 18-MED-10-0993

Jack Buettner

Conciliator

Appearances

For the Employer:

Charles D. Hall III	Esq. Law Dir.
Craig E. Chessler	Trustee
Mark Martin	Fire Chief

For the Union:

Ryan Lemmerbrock	Esq. Counsel 396
Mitch Beitler	Vice President
Cory Wilson	OAPFF Representative
Mary Schultz	Financial Witness
Adam Reiger	President Local 3960

INTRODUCTION

The State Employment Relations Board (SERB) appointed the undersigned as conciliator for this public employment labor dispute on August 28, 2019 in accordance with Ohio Revised Code Section 4117.14 (D) (1). The Parties agreed to November 7, 2019, for the hearing of this case. They filed timely position statements before the hearing with the conciliator and served each other. The Hearing was held at the offices of Perry Township, 622 Genoa Avenue S.W., Massillon, Ohio.

The conciliation process is a final offer issue-by-issue arbitration [Ohio Revised Code Section 4117.14(G)]. By statute, it follows the fact-finding dispute resolution procedure. Employees subject to the conciliation process do not have the right to strike. [Ohio Revised Code Sections 4117.14(D)(2) and 4117.15(A)]

There are four bargaining units in the Township: Police Patrol Officers and Detectives represented by the F.O.P.; Police Sergeants also represented by the F.O.P.; Road. and Bridge Workers represented by A.F.S.C.M.E.; and the Firefighters Local 3960 I.A.F.F. The Firefighters Local 3960 bargaining unit is comprised of twelve (12) Firefighters, three (3) Captains and approximately 35 to 40 part-time Firefighters. The IAFF members work a three-platoon system, one 24-hour work day on duty followed by 48 hours off-duty, averaging a work week of 53 hours split across three shifts with five (5) members assigned to each shift.

The Employer is the Board of Trustees for Perry Township, a three-member Board. It is the legislative and governing authority over the Perry Township Fire and Emergency Medical Services Department. It was organized and is operating under the authority of Ohio Revised Code Chapter 505, specifically Ohio Revised Code Sections 505.37 to 505.44.

Perry Township is located in Stark County between the cities of Canton, Ohio and Massillon, Ohio. The Township has a population of 29,167 and covers an area of approximately 24 square miles with roughly 350 businesses. The Township provides a full range of municipal services including Police and Fire protection, street maintenance and repair, park services, and other general administrative and community services. The Township is financed by property taxes, Local Government Fund (LGF), cable franchise fees, and fees for services.

The Parties collective bargaining agreement (CBA) expired on December 3, 2018, but has been extended by mutual agreement. There have been five (5) bargaining sessions, a request for mediation which was not mutually agreed to, and a Fact-Finding hearing held on March 7, 2019 with Fact-Finder Dennis E. Minni, Esquire. The Township rejected the Fact-Finder's report and recommendation.

This Conciliator met with both spokespersons to explore whether or not they could use the Fact-Finder's report as a basis for the possibility of mediation. Both Parties were willing to spend a few hours in mediation in an attempt to reach resolution. After an hour and half, the main issues still were unresolved and everyone agreed to proceed to hearing.

At the opening of the conciliation hearing, the Township wanted to introduce three procedural issues:

1. The Employer's response to the Union's motion to strike the Employer's Conciliation position statement due to the untimely submission of the Township's position statement to the State Employment Relation Board.
2. The Employer's position that the Conciliator is not bound by the Fact-Finder's recommendation, and that the Conciliator has considerable amount of deference with regard to the fact-finder's report. The Union believes the appropriate standard is that unless there is a clear error by the Fact-Finder, the Fact-Finder's recommendations should stand.
3. It is the Township's position that due to the fact that the Union did not object to the Fact-Finder's award, only those objections raised by the Township are properly before the Conciliator. The Union should not be allowed to participate.

TENTATIVE AGREEMENTS AGREED UPON PRIOR TO HEARING

The Parties requested that the Conciliator incorporate into his award all tentative agreements per the Fact-Finder's recommendation. (Employer Exhibits 3 & 4 and Union Exhibits 2 & 4). Any tentative agreements reached between the parties are incorporated in this final and binding award.

Additionally, during the opening of the conciliation hearing, the Parties agreed to Union Dues Article 6, Section 6.5, changing “shall” to “may”.

Article 6- Union Dues

Section 6:5 The Employer agrees that any employees, who are in the Bargaining Unit but are not in the Union, **may** pay a periodic fair share fee to be determined by the Union. Such fair share fee shall not exceed dues paid by members of the Union in the same bargaining Unit; such fair share fees payments to be effective with the date of this Agreement. The Employer agrees to deduct such fair share fees and pay them to the Union pursuant to the Ohio Revised Code 4117.09.

Both Parties are agreeable to changing the Article 37 title from Personal Leave to Quarterly Attendance Bonus. Leave days are to be changed to Quarterly Attendance Bonus, payable to the bargaining unit member in a separate check. Delete current Section 37:1 and replace and rename with the following:

Article 37- Quarterly Attendance Bonus

Section 37:1 Each bargaining unit member who does not use any sick leave during each quarter of the calendar year shall receive a One Hundred Fifty Dollars (\$150.00) bonus.

Section 37:2 Each bargaining unit member's total quarterly accumulation for each quarter shall be tabulated and paid during the first pay period in the successive calendar year. The bonus shall be paid separately from the member's regular pay.

OPEN ISSUES FOR CONCILIATION

The Parties offered oral evidence and submitted documentary exhibits at the hearing. The decisions herein represent the following final and binding award on each of the submitted disputed issues selected from each of the Party's settlement offers on an

issue-by-issue basis. The award considered the factors outlined in Ohio Code 4117.14(G)(7). They are summarized as follow:

- Comparisons with past collectively bargained agreements, if any, between the parties;
- Comparison of the unresolved issues relative to the employees in the bargaining unit with those issues related to other public and private employees doing comparable work, giving consideration to factors peculiar to the area and classification involved;
- The interest and welfare of the public, the ability of the public employer to finance and administer the issue proposed, and the effect of the adjustments on the normal standard of public service;
- The lawful authority of the public employer;
- Any stipulations of the parties;
- Such other factors, not confined to those listed, which are normally taken in to consideration in the determination of issues submitted to final offer settlement

ISSUE – ARTICLE 17: HOURS OF WORK/WORK PERIODS

Employer's Position:

The Employer proposed a reduction in the work week from 53 hours to 52 hours. It would read:

Section 17:1 Effective January 1, 2020, employees designated as Shift shall have a work week of fifty-two (52) hours per week. The work week shall constitute of twenty-four (24) hours of consecutive duty and forty-eight (48) consecutive off duty. Starting time shall begin at 0700 hours and continue for twenty-four (24) consecutive hours ending at 0700 hours. Normal work schedule shall be on a fourteen (14) day shift cycle and shall include one (1) "EDO" (42 calendar days per cycle). The EDO schedule shall be distributed to all members of the Bargaining Unit by January 30 for the current year. EDO's may be rescheduled to any day within that 42-calendar day cycle, with the approval of the Chief whose approval shall not be unreasonably withheld.

Section 17:2 Current contract language

Section 17:3 Current contract language

Section 17:4 The employer may choose to modify an employee's work schedule for the benefit of the department.

1. Short-Term Change

- a. Short-term changes will last no longer than 28 days. During the period of the change, the employee will retain rights to re-schedule any affected time off.
- b. The employee will continue to accrue all benefits, including salary, at their **52-hour rate**.
- c. No accrued leave will be converted for short-term assignments.
- d. The effective dates of the change will be selected to ensure that the employee's hours worked meet, but do not exceed their normally scheduled hours.

Section 17:5 Maintain current contract language

Union's Position:

The Union proposed the following:

Section 17:1 Employees designated as Shift shall have a work week of fifty-three (53) hours per week. The work week shall constitute of twenty-four (24) hours of consecutive duty and forty-eight (48) consecutive off duty. Starting time shall begin at 0700 hours and continue for twenty-four (24) consecutive hours ending at 0700 hours. Normal work schedule shall be on a nineteen (19) day shift cycle and shall include one (1) "EDO" (57 calendar days per cycle). The EDO schedule shall be distributed to all members of the Bargaining Unit by January 30 for the current year. EDO's may be rescheduled to any day within that 57calendar day cycle, with the approval of the Chief whose approval shall not be unreasonably withheld.

Effective January 1, 2020, Shift employees shall have a work week of fifty and four-tenths (50.4) hours per week. The normal work schedule shall be on a thirty (30) day shift cycle and shall include one (1) "EDO" per (30 calendar days per cycle). The EDO schedule shall be distributed to all members of the Bargaining Unit by January 30 for the current year. EDO's may be rescheduled to any day within that thirty (30) calendar day cycle, with the approval of the Chief whose approval shall not be unreasonably withheld.

Section 17:2 Current contract language

Section 17:3 Current contract language

Section 17:4 The employer may choose to modify an employee's work schedule for the benefit of the department.

1. Short-Term Change

- a. Short-term changes will last no longer than 28 days. During the period of the change, the employee will retain rights to re-schedule any affected time off.
- b. The employee will continue to accrue all benefits, including salary, at their 53-hour rate, **or 50.4-hour rate effective January 1, 2020.**
- c. No accrued leave will be converted for short-term assignments.

Discussion and Award:

At the hearing, Management presented arguments that going to a 50.4-hour work week would significantly impact Kelly Days and Earned Days Off (EDO). The Union rebutted this, and said that Management is not fully utilizing the part timers within the fire department. It was the Union's belief that the part time employees are not meeting the minimum thirty (30) hours that is required for the month as well as weekend requirements. Fact-Finder Minni found that looking at the professional fire fighter departments in Stark county provided a fair representation of what the comparables should be. Union Exhibit 13, Stark County's 2018-19 Hourly and Annual Salary Comparables, included average work week hours for the eight municipalities within Stark County. Currently, the Perry Township work week hours are 53.0 hours. The average for this grouping is 50.6. The Perry Township work week hours are higher than the average of the surrounding municipalities/townships but equal to another nearby department in North Canton. Half of the eight municipalities are at 52.0 to 53.0 hours. These figures may have led Management to their proposal of reducing the work week to 52 hours. This Conciliator also took into consideration the complete economic package, which included reducing the wage table, eliminating Probationary Rate, compressing the remaining steps. After reviewing these facts as stated above and the exhibits presented, it is this Conciliator's decision to accept the Management proposal of a 52-hour work week effective January 1, 2020 as stated above.

ISSUE – ARTICLE 21: SICK LEAVE

Employer's Position:

The following change would be made to Section 21.1:

Section 21:1 Sick leave, for the purpose of this Agreement, shall be an absence from duty with pay necessitated by illness or injury to the employee; exposure by the employee to contagious disease communicable to other employees while not on duty; or illness or injury to a member of the employee's immediate family residing within the same household as the employee. Sick leave may be used for the illness or injury of a family member not residing within the employee's household, with prior approval from the Chief or his/her designee. Upon the prior approval of the Chief or his/her designee, sick leave may be used for funeral leave or extended family as defined in Article 23 - Funeral leave. Such approvals shall not be unreasonably withheld.

Employees assigned to **52-hour shift** shall accumulate **6.46 hours per shift**. New fulltime employees, upon hire, shall be provided with a credit of twenty-four (24) hours of sick leave to their account

Union Position:

The Union proposed the following:

Section 21:1 Sick leave, for the purpose of this Agreement, shall be an absence from duty with pay necessitated by illness or injury to the employee; exposure by the employee to contagious disease communicable to other employees while not on duty; or illness or injury to a member of the employee's immediate family residing within the same household as the employee. Sick leave may be used for the illness or injury of a family member not residing within the employee's household, with prior approval from the Chief or his/her designee. Upon the prior approval of the Chief or his/her designee, sick leave may be used for funeral leave or extended family as defined in Article 23 - Funeral leave. Such approvals shall not be unreasonably withheld.

Employees assigned to 53-hour shift shall accumulate 168 hours annually. **Effective January 1, 2020, employees assigned to 50.4-hour shift shall accumulate 168 hours annually.** New fulltime employees, upon hire, shall be provided with a credit of twenty-four (24) hours of sick leave to their account.

Section 21:2 [Maintain current contract language]

Section 21:3 Abuse of sick leave may subject the employee to discipline as determined by the Township.

Section 21:4 **Employees using sick leave for two consecutive work shifts, or using leave for three consecutive work shifts with sick leave used for one**

of those shifts, may be required to produce documentation verifying the basis for the sick leave.

Discussion and Award

In reviewing the Fact-Finder's report and evidence and discussion presented at the hearing, this Conciliator finds no substantial evidence to support the allegations of sick leave abuse. Section 21:1 needs to be modified, however, to reflect the 52-hour work week. This Conciliator's position is to accept the Management's position as stated above.

ISSUE – ARTICLE 28: WAGES

Employer's Position:

Section 28:1 Effective **from the date of ratification of this Agreement**, each employee shall, ~~with continuous service~~ as a full-time firefighter/paramedic with the Perry Township Fire Department, shall receive an hourly rate increase as follows:

A base hourly rate increase of 2.0% for the first twelve (12) months, 2.0% for the second twelve months and 2.0% increase for the final twelve (12) months, of the collective bargaining agreement.

2019 (2%)				2020 (2%)				2021 (2%)		
Class	Hourly Rate	Total Hours		Class	Hourly Rate	Total Hours		Class	Hourly Rate	Total Hours
FF1	\$16.47	2756		FF1	\$16.80	2704		FF1	\$17.14	2704
FF2	\$18.68	2756		FF2	\$19.05	2704		FF2	\$19.43	2704
FF3	\$20.31	2756		FF3	\$20.72	2704		FF3	\$21.13	2704
Captain	\$21.43	2756		Captain	\$20.86	2704		Captain	\$22.30	2704

Section 28:2 The Township agrees to pay **an amount equal to one percent** 1% of the employee's base wage if the employee responds to 25% of all callbacks. Callback incentive will be payable the first cycle in December. Alarm cycle will be from December to December.

Section 28:3: A new "Acting Officer in Charge" (AOIC) examination and eligibility list shall be scheduled during the first quarter of each calendar

year. All non-probationary members of the department shall be eligible to participate in the AOIC examination.

Section 28:4: Members that are scheduled to perform as the AOIC for ten (10) or more hours of a shift shall be compensated an addition a twenty-five (\$25.00) as AOIC pay. The member must indicate when he is entitled to AOIC pay on their time sheet. An Acting Officer in Charge last shall be established using those matters that test the ability of the person examined to discharge the particular duties of the position. The testing may include structured interviews, assessment centers, work simulations, written tests, and examinations of knowledge, skills, abilities, education, and behaviors. Testing shall be done by Ohio Fire Chiefs Associati0on.

Notice of any AOIC examination shall be posted in all firehouses. The notice shall be posted for thirty (30) days prior to the date when the examination shall be administered. Any Bargaining Unit member wishing to test for an AOIC position shall submit this request in writing during the posting period.

Posting shall include:

- a. List of examination books
- b. Components of the examination (written, assessment center oral interview)
- c. Date, time, and place of examination
- d. Additional requirements to be met by candidate
- e. Testing components

Section 28:5 The names of the examinees who have taken the examination shall be placed on the eligible list in accordance with their grades. The examinee receiving the highest grade shall be placed first on the list. If two or more examinees receive the same grade, seniority in Perry Township Fire Department shall determine the order of the names. The individual on shift with the highest score shall be the AOIC.

Union's Position:

Section 28:1 Effective January 1, ~~2016~~ **2019**, each employee shall, with continuous service as a full-time firefighter/paramedic with the Perry Township Fire Department, receive an hourly rate as follows:

	2016	2017	2018	2019
Probationary	13.27	13.54	14.08	14.08

FF/P 1 year	15.52	15.83	16.15	16.15
FF/P 2 year	17.60	17.95	18.31	18.31
FF/P 3 year	19.14	19.52	19.91	19.91
Captain	20.20	20.60	21.01	21.01
	2016 (2%)	2017 (2%)	2018 (2%)	

Effective January 1, 2020, each employee shall, with continuous service as a full-time firefighter/paramedic with the Perry Township Fire Department, receive an hourly rate as follows:

	<u>01-01-2020 (4%)</u>		<u>01-01-2021 (2%)</u>	
	Hourly	Annual	Hourly	Annual
Probationary	\$17.66	\$46,289.78	\$18.02	\$47,215.57
FF/P 1 year	\$20.02	\$52,480.85	\$20.43	\$53,530.47
FF/P 2 year	\$21.77	\$57,066.84	\$22.21	\$58,208.18
Captain	\$22.98	\$60,219.70	\$23.44	\$61,424.10

The above hourly rates reflect an increase of two (2.0%) from 2015 rates for 2016, an increase of two (2.0%) for 2017 and an increase of two (2.0%) for 2018 zero percent (0) from the rates for 2019, an increase of four percent (4.0%) for 2020, and an increase of two percent (2.0%) for 2021.

Section 28:2 – 28:5 [Maintain current contract language]

Discussion and Award:

Article 28: Wages presents a multitude of issues since wages are tied to various other articles like Article 17 Hours of Work. The Union proposed no wage structure based on a 52-hour week. While Management made a proposal based on a 52-hour shift, some employees would have their annual earning reduced. Perry Township is already in the lower quartile of the eight (8) comparable fire departments in Stark County. This Conciliator does not want to accept a proposal that reduces annual salaries of some employees.

Both Parties tentatively agreed to a compression of the wage table, replacing the Probationary Step with FF/P1 year and compressing the remaining steps. This change in the wage table provides an economic increase in and of itself.

Both Parties proposed an overall 6% increase. Management proposed a 2%, 2% and a 2% increase. The Union proposed a 0%, 4%, and 2% increase. This Conciliator is accepting the Union's proposal for a 0%, 4%, and 2%. The 0% in 2019 is appropriate since that money cannot be collected because of ORC 4117.14 (G) (11). A G-11 waiver was not filed which bars this Conciliator from awarding increases in the year that he is appointed. Management's proposal of a 2% in 2019 is merely a place holder for future calculations.

The sticking point in the Union's wage proposal is their calculation of what the hourly rate would be in 2020 and 2021. The base hourly rate used in these calculations was adjusted for a 50.4-hour week so that no member would suffer a loss of annual salary due to the reduction of hours. A new base hourly rate was created upon which the 4% increase in 2020 and the 2% increase in 2021 was applied.

This Conciliator's decision on wages is make a wage adjustment of 1.0% on the 2018/2019 wages to compensate for the change in work week from 53 hours to 52 hours. The wage table would be as follows:

	<u>Hourly Rate</u>
Probationary	\$14.22
FF 1	\$16.31
FF 2	\$18.49
FF 3	\$20.11
Captain	\$21.22

As proposed by the Union, the annual increase will then be 4% effective 1/1/2020, and 2% effective 1/1/ 2021 based on the above adjusted hourly rates. Annual hours will decrease from a 53 hourly work week to a 52 hourly work week. The wage tables area as follows:

Effective 1/1/2020

	<u>Hourly Rate</u>	<u>Annual Hours</u>	<u>Annual Pay</u>
FF1	\$16.96	2704	\$45,859.84
FF2	\$19.23	2704	\$51,997.92
FF3	\$20.91	2704	\$56,540.64
Captain	\$22.07	2704	\$59,677.28

Effective 1/1/2021

	<u>Hourly Rate</u>	<u>Annual Hours</u>	<u>Annual Pay</u>
FF1	\$17.30	2704	\$46,779.20
FF2	\$19.61	2704	\$53,025.44
FF3	\$21.33	2704	\$57,676.32
Captain	\$22.51	2704	\$60,867.04

Statutory provisions of ORC 4117 (G) (6) require that a conciliator consider the Fact-Finder's recommendation. This Conciliator took into account Fact-Finder Minni's report but found it to be silent about some of the issues involved in the wage proposals. Also factoring into this decision was the State Employment Relations Board Fact-Finding/Conciliation Report statistics as well as the criteria required by ORC 4117.14 (C) (4) (E). Additionally, this wage proposal will be more aligned with the Perry Township Fraternal of Police award (Union Exhibit 7) from March 1, 2019. The conciliator awarded an annual wage increase of 3% effective January 1, 2019, a 2% increase effective January 1, 2020, and a 2% effective January 1, 2021.

ISSUE – ARTICLE 30: UNIFORM ALLOWANCE

Employer's Position:

The Employer accepts the recommendation of Fact-Finder Minni and suggests the following language consistent with that recommendation:

Section 30:1 Effective January 1, 2020, uniforms shall be supplied by the employer on a uniform allowance credit. All probationary hires shall receive a uniform allowance credit in the amount of seven hundred dollars (\$700.00). All non-probationary employees shall receive an annual uniform allowance credit in the amount of five hundred dollars (\$500.00) The Uniform allowance shall take the form of a voucher draw account to be maintained by the Fire Department Administration. Any item authorized for wear by the Fire Department Uniform Policy may be purchased through the uniform allowance. If the charges to an employee's account are more than the amount provided for, the difference, not to exceed \$25.00, shall be

charged against the employee's next year's annual voucher draw. If the difference is more than \$25.00, the employee shall be required to reimburse the Township for the amount of such expenses.

Section 30:2 Upon completion of the probationary period the Employer shall provide each Bargaining Unit Member with one (1) complete Class A uniform.

Section 30:3 Any changes in uniform mandated by the Fire Chief shall be paid by the Township.

Section 30:4 Employees will be permitted to purchase job related specialty items as defined in departmental uniform policy, as deemed appropriate for the job at the discretion of the Fire Chief.

Section 30:5 Employees will use their PPE, uniforms and specialty items only for Perry Township Fire Department work-related purposes.

Section 30:6 Whenever personal items used in the performance of duties are damaged or destroyed while on duty, the Employer shall repair or replace same up to a maximum of one hundred fifty dollars (\$150.00) per occurrence by the Fire Chief or his/her designee. Proof of cost incurred is required.

Union's Position:

Section 30:1 Effective January 1 of each calendar year, all probationary and non-probationary employees shall receive an annual uniform allowance of seven hundred fifty dollars (\$750.00). In any year that a probationary employee is hired, the probationary employee shall receive the entire seven hundred fifty (\$750) upon appointment.

Effective January 1, 2020, the uniform allowance shall take the form of a voucher draw account to be maintained by the Fire Department Administration. Any item authorized by the Fire Department Uniform policy or item that is required to be used in the line of duty may be purchased through the uniform allowance, up to seven hundred fifty dollars (\$750.00) annually. If the charges to an employee's account are more than the amount provided for, the difference, not to exceed \$25.00, shall be charged against the employee's next year's annual voucher draw account. If the difference is more than \$25.00, the employee shall be required to reimburse the Township for the amount of such expenses.

~~Section 30:2 The uniform allowance shall be utilized by a separate check issued by the first pay period in January. The uniform allowance shall be by actual check, not by direct deposit, regardless of how the employee's paycheck issued.~~

The uniform allowance may be utilized by employees for purchase of all required uniform clothing, components, shoes, foul weather gear, required identification and any other items approved by the Fire Chief or his/her designee. All uniform purchases shall be subject to the prior approval of the Fire Chief or his/her designee. If all the employee's uniform meets the current uniform standard, the uniform allowance may be used for the purchase of a leather firefighting helmet. The style of leather firefighting helmet shall be approved by the Fire Chief or his/her designee.

Section 30:3 Current contract language

Section 30:4 Current contract language

Section 30:5 Upon completion of the probationary period the Employer shall provide the Bargaining Unit Member with one (1) complete Class A uniform.

Discussion and Award:

In making the award, this Conciliator considered the Employer's proposal as originally submitted versus the language that was submitted on the day of the hearing, Management Exhibit B.

Both Parties were willing to move to a quartermaster system. No evidence of abuse of the uniform allowance was evident and the switch to a voucher/allowance system may provide more oversight to the program. Both Parties included language that would provide a complete Class A uniform upon completion of the probationary period. The biggest difference in the proposals was in the amount of the allowance. The current amount is \$750.00 for probationary and non-probationary employees, Management proposed reducing the amount to \$700.00 for probationary employees and \$500.00 for non-probationary employees. \$750.00 is already less than the average allowance for this benefit in Stark County so this Conciliator sees no reason to reduce the amount.

After a review of all evidence including Stark County Fire Department uniform allowance comparables, this Conciliator position it to accept the Union's position as stated above.

ISSUE – ARTICLE 41: DURATION OF AGREEMENT

Employer's Position:

Section 41:1 This Agreement shall be effective from **the date of ratification of the Agreement by the parties, and shall remain in full force and effect for the next successive, thirty-six (36) months.**

Union's Position:

Section 41:1 This Agreement shall be effective from January 1, 201~~9~~⁶, and shall remain in full force and effect until December 31, 2021~~8~~.

Section 41:2 – 41:4 [Maintain current contract language]

Discussion and Award:

One of the criteria for a conciliator is to look at past bargaining history and other bargaining units within the Township. The Parties have historically bargained a duration of three (3) years. This Conciliator's decision is to accept the Union's proposal as stated above with the effective date of January 1, 2019 and extending to December 31, 2021.

CERTIFICATE OF SERVICE

Originals of the Conciliation Report and Award were served by electronic mail on this 29th day of December, 2019, to the following:

Charles D. Hall III, Esquire, Law director
Ryann Lemmerbrock, Esquire, Counsel 396
State Employment Relations Board

Jack Buettner, Conciliator